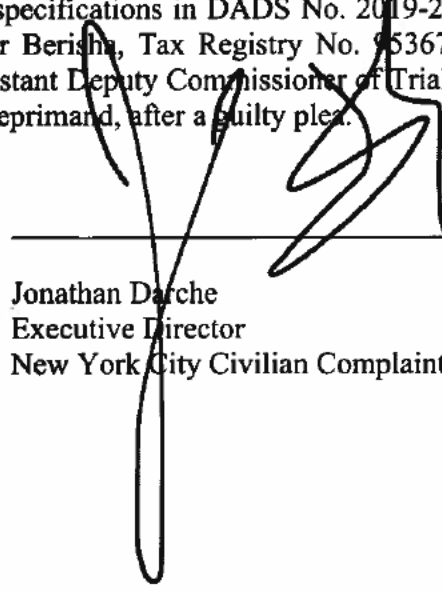


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, May 2, 2022. Contents noted. Recommend approval of the negotiated plea agreement of charges and specifications in DADS No. 2019-20140, CCRB No. 2018000538, against Police Officer Tomor Berish, Tax Registry No. 953678. The case was conferenced on April 19, 2022, before Assistant Deputy Commissioner of Trials – Jeff S. Adler, who approved the negotiated penalty of a Reprimand, after a guilty plea.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

MAY 04 2023

POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2019-20140
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, BERISHA	FIRST TOMOR	M.I.	COMMAND 043 PRECINCT
SHIELD NO. 10417	TAX REGISTRY NO. 953678	SOCIAL SECURITY NO.		DATE APPOINTED 01/09/2013
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Tomor Berisha, on or about January 17, 2018, at approximately 0050, while assigned to 043 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority	PLEADED GUILTY	REPRIMAND .00 - It is recommended that the Respondent be Reprimanded.


FIRST DEPUTY COMMISSIONER

7/1/22
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

5/4/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 21, 2023

Re: CCRB Case No. 201903406 (Incident Date: April 11, 2019) involving Lieutenant Jonathan Rivera, Tax No. 949550 (DADS No. 2021-23395) / CCRB Case No. 201901922 (Incident Date: March 4, 2019) involving Police Officer Ariel Eusebio, Tax No. 958565 (DADS No. 2020-22200) / CCRB Case No. 201800538 (Incident Date: January 17, 2018) involving Detective Tomor Berisha, Tax No. 953678 (DADS No. 2019-20140) and Detective John Echevarria, Tax No. 953836 (DADS No. 2019-20141) / CCRB Case No. 201907401 (Incident Date: August 18, 2019) involving Sergeant Frederick Manney, Tax No. 949938 (DADS No. 2021-23950)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendations of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matters involving the above officers. It was determined that the CCRB recommendations of "Training" are appropriate in this matter. However, while formalized training will properly address the substantiated allegations and is appropriate under the Disciplinary System Penalty Guidelines, the imposition of charges and specifications are not warranted in cases where an appropriate penalty is formalized training.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in these matters and Police Officer Eusebio, Detectives Berisha and Echevarria, Sergeant Manney, and Lieutenant Rivera will receive the formalized training appropriate in connection with their respective substantiated allegations.

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.
Matthew Schieffer, Esq.
Michael Martinez, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

April 28, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 201903406 (Incident Date: April 11, 2019) involving Lieutenant Jonathan Rivera, Tax No. 949550 (DADS No. 2021-23395) I CCRB Case No. 201901922 (Incident Date: March 4, 2019) involving Police Officer Ariel Eusebio, Tax No. 958565 (DADS No. 2020-22200) / CCRB Case No. 201800538 (Incident Date: January 17, 2018) involving Detective Tomor Berisha, Tax No. 953678 (DADS No. 2019-20140) and Detective John Echevarria, Tax No. 953836 (DADS No. 2019-20141) I CCRB Case No. 201907401 (Incident Date: August 18, 2019) involving Sergeant Frederick Manney, Tax No. 949938 (DADS No. 2021-23950)

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated April 21, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in these matters. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that after reviewing the recommendation of CCRB, you determined that the recommended penalty of “Training” was appropriate but did not require the imposition of charges & specifications against all five respondents.

At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve these cases today, and the respondents were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is positioned above a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.
Matthew Schieffer, Esq.
Michael Martinez, Esq.

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, June 30, 2022. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2019-20141, CCRB No. 2018000538 against Police Officer John Echevarria, Tax No. 953836, with the recommendation of a Reprimand. Assistant Deputy Commissioner, Trials Jeff Adler, reviewed the case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

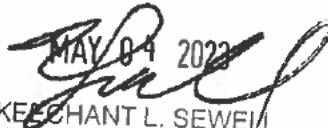
Charges and Specifications is an egregious penalty in regard to this case. It is disingenuous to recommend a Reprimand while not also recommending the dismissal of the Charges and Specifications. The Respondent's record should not be tarnished with Charges and Specifications, when CCRB is recommending a Reprimand (Training) and he is accepting it. Therefore, the undersigned recommends the dismissal of Charges and Specifications and Training in Patrol Guide Procedure No. 212- 11 (Investigative Encounters).

RECOMMEND APPROVAL.


Edward A. Caban
FIRST DEPUTY COMMISSIONER

EAC/rn

APPROVED


MAY 04 2022
KERCHANT L. SEWELL
POLICE COMMISSIONER